



ARIZONA HOUSE OF REPRESENTATIVES FLOOR AMENDMENT EXPLANATION

*57th Legislature, 2nd Regular Session
Majority Research Staff*

SB 1511: nondomiciled commercial drivers license; validity

KOLODIN FLOOR AMENDMENT

1. Asserts that this legislation does not broaden the category of persons to whom a nondomiciled commercial driver license may be issued and provides no independent authorization for such licenses.

ADDITIONAL COW
KOLODIN FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO S.B. 1511
(Reference to House engrossed Senate bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.
[Green underlining in brackets] indicates text added to new session law or text restoring existing law.
~~[GREEN STRIKEOUT IN BRACKETS]~~ indicates new text removed from statute or previously enacted session law.
~~[Green strikeout in brackets]~~ indicates text removed from existing statute, previously enacted session law or new session law.
<<Green carets>> indicate a section added to the bill.
~~<<Green strikeout in carets>>~~ indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 28, chapter 14, article 2, Arizona Revised
3 Statutes, is amended by adding section 28-5233, to read:

4 28-5233. Commercial motor vehicle operator; lawful presence;
5 failure of proof; impoundment of vehicle

6 A. A PERSON WHO IS ISSUED A NONDOMICILED COMMERCIAL DRIVER LICENSE
7 MAY NOT OPERATE A COMMERCIAL MOTOR VEHICLE IN THIS STATE UNLESS THE PERSON
8 CAN PROVIDE EVIDENCE OF LAWFUL IMMIGRATION STATUS PURSUANT TO 49 CODE OF
9 FEDERAL REGULATIONS PART 383 OR LAWFUL PRESENCE IN THE UNITED STATES
10 PURSUANT TO THE ACCEPTABLE DOCUMENTS PRESCRIBED IN SECTION 41-1080.

11 B. A LAW ENFORCEMENT OFFICER MAY REQUEST EVIDENCE OF LAWFUL
12 IMMIGRATION STATUS OR LAWFUL PRESENCE IN THE UNITED STATES PURSUANT TO
13 SUBSECTION A OF THIS SECTION FROM A PERSON OPERATING A COMMERCIAL MOTOR
14 VEHICLE WITH A NONDOMICILED COMMERCIAL DRIVER LICENSE.

15 C. IF A PERSON OPERATING A COMMERCIAL MOTOR VEHICLE WITH A
16 NONDOMICILED COMMERCIAL DRIVER LICENSE FAILS TO PROVIDE EVIDENCE REQUESTED
17 PURSUANT TO SUBSECTION B OF THIS SECTION, THE LAW ENFORCEMENT OFFICER OR
18 THE LAW ENFORCEMENT AGENCY OF THE LAW ENFORCEMENT OFFICER SHALL:

19 1. IMPOSE A CIVIL PENALTY PURSUANT TO SECTION 28-5240.

20 2. ISSUE A CITATION PURSUANT TO THIS SECTION.

21 3. REPORT THE VIOLATION TO:

22 (a) THE JURISDICTION THAT ISSUED THE PERSON'S COMMERCIAL DRIVER
23 LICENSE.

24 (b) THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION.

25 D. IF A PERSON OPERATING A COMMERCIAL MOTOR VEHICLE WITH A
26 NONDOMICILED COMMERCIAL DRIVER LICENSE FAILS TO PROVIDE EVIDENCE REQUESTED
27 PURSUANT TO SUBSECTION B OF THIS SECTION, THE LAW ENFORCEMENT OFFICER OR

1 THE LAW ENFORCEMENT AGENCY OF THE LAW ENFORCEMENT OFFICER MAY PLACE THE
2 DRIVER ON AN OUT-OF-SERVICE ORDER AS DEFINED IN 49 CODE OF FEDERAL
3 REGULATIONS SECTION 390.5. IF THE PERSON OPERATING THE COMMERCIAL MOTOR
4 VEHICLE IS PLACED OUT-OF-SERVICE PURSUANT TO THIS SUBSECTION, THE LAW
5 ENFORCEMENT OFFICER SHALL DOCUMENT THE COMMERCIAL DRIVER LICENSE
6 INFORMATION AND IMMEDIATELY REPORT THE OUT-OF-SERVICE ORDER TO:

7 1. THE JURISDICTION THAT ISSUED THE PERSON'S COMMERCIAL DRIVER
8 LICENSE.

9 2. THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION THROUGH THE
10 COMMERCIAL DRIVER'S LICENSE INFORMATION SYSTEM OR OTHER APPROPRIATE
11 FEDERAL REPORTING MECHANISM.

12 3. THE MOTOR CARRIER THAT EXERCISED OPERATIONAL CONTROL OF THE
13 COMMERCIAL MOTOR VEHICLE AT THE TIME OF THE STOP.

14 E. THE MOTOR CARRIER THAT EXERCISED OPERATIONAL CONTROL OF THE
15 COMMERCIAL MOTOR VEHICLE AT THE TIME OF THE STOP SHALL ARRANGE EITHER OF
16 THE FOLLOWING WITHIN TWENTY-FOUR HOURS AFTER THE MOTOR CARRIER RECEIVES
17 NOTIFICATION THAT THE PERSON WAS PLACED OUT-OF-SERVICE:

18 1. A REPLACEMENT PERSON TO OPERATE THE COMMERCIAL MOTOR VEHICLE WHO
19 MEETS ALL THE REQUIREMENTS OF SUBSECTION A OF THIS SECTION.

20 2. REMOVAL OF THE COMMERCIAL MOTOR VEHICLE FROM THE ROADWAY BY THE
21 MOTOR CARRIER OR COMMERCIAL MOTOR VEHICLE OWNER. IF THE COMMERCIAL MOTOR
22 VEHICLE IS NOT REMOVED FROM THE ROADWAY WITHIN TWENTY-FOUR HOURS AS
23 REQUIRED BY THIS PARAGRAPH, A LAW ENFORCEMENT AGENCY MAY IMPOUND THE
24 COMMERCIAL MOTOR VEHICLE FOR A PERIOD OF NOT MORE THAN THIRTY DAYS. THE
25 LAW ENFORCEMENT AGENCY SHALL NOTIFY THE COMMERCIAL MOTOR VEHICLE OWNER AND
26 ANY LIEN HOLDERS OF RECORD OF THE COMMERCIAL MOTOR VEHICLE BY TELEPHONE OR
27 EMAIL WITHIN TWENTY-FOUR HOURS AFTER THE IMPOUNDMENT AUTHORIZED PURSUANT
28 TO THIS PARAGRAPH. IF THE OWNER OR LIEN HOLDER OF THE COMMERCIAL MOTOR
29 VEHICLE IS DEEMED UNREACHABLE BY TELEPHONE OR EMAIL PURSUANT TO SUBSECTION
30 J OF THIS SECTION, THE LAW ENFORCEMENT AGENCY SHALL PROVIDE NOTICE BY
31 CERTIFIED MAIL WITHIN SEVENTY-TWO HOURS AFTER THE IMPOUNDMENT. THE
32 NOTIFICATION REQUIRED BY THIS PARAGRAPH MUST INCLUDE ALL OF THE FOLLOWING:

33 (a) THE LOCATION OF THE IMPOUNDED COMMERCIAL MOTOR VEHICLE.

34 (b) CONTACT INFORMATION FOR RETRIEVAL OF THE COMMERCIAL MOTOR
35 VEHICLE.

36 (c) A LIST OF THE REQUIRED DOCUMENTS NEEDED TO RETRIEVE THE
37 COMMERCIAL MOTOR VEHICLE.

38 (d) INFORMATION REGARDING THE RETRIEVAL PROCEDURES FOR LESSORS
39 PURSUANT TO SUBSECTION F OF THIS SECTION.

40 (e) A STATEMENT OF IMPOUNDMENT CHARGES AND RESPONSIBILITY FOR
41 PAYMENT. THE MOTOR CARRIER OR LESSEE OF THE COMMERCIAL MOTOR VEHICLE IS
42 SOLELY RESPONSIBLE FOR ALL IMPOUNDMENT, TOWING AND STORAGE CHARGES FOR THE
43 COMMERCIAL MOTOR VEHICLE, FOR ANY CHARGES RELATED TO THE UNLOADING, THE
44 HANDLING, APPROPRIATE STORAGE AND THE TRANSFER OF AND ADMINISTRATIVE OR
45 OTHER FEES RELATED TO THE CARGO THE COMMERCIAL MOTOR VEHICLE WAS CARRYING
46 AT THE TIME OF THE VIOLATION AND FOR ANY COSTS INCURRED FOR NOTIFICATION
47 PROVIDED BY CERTIFIED MAIL PURSUANT TO THIS PARAGRAPH.

1 F. IF THE COMMERCIAL MOTOR VEHICLE IS OPERATED PURSUANT TO A LEASE
2 AGREEMENT:

3 1. THE LESSEE OR MOTOR CARRIER IS SOLELY RESPONSIBLE FOR ALL
4 IMPOUNDMENT, TOWING AND STORAGE CHARGES.

5 2. THE LAW ENFORCEMENT AGENCY OR IMPOUND FACILITY SHALL RELEASE THE
6 COMMERCIAL MOTOR VEHICLE TO THE LESSOR ON PRESENTATION OF BOTH OF THE
7 FOLLOWING:

8 (a) PROOF OF OWNERSHIP, INCLUDING TITLE, REGISTRATION OR OTHER
9 DOCUMENTATION SHOWING THE LESSOR HOLDS LEGAL TITLE TO THE COMMERCIAL MOTOR
10 VEHICLE.

11 (b) A COPY OF THE LEASE AGREEMENT OR OTHER DOCUMENTATION THAT SHOWS
12 THE COMMERCIAL MOTOR VEHICLE WAS LEASED TO THE MOTOR CARRIER AT THE TIME
13 OF THE VIOLATION.

14 G. THE IMPOUND FACILITY MAY PURSUE COLLECTION OF ALL FEES OR
15 CHARGES FROM THE LESSEE OR MOTOR CARRIER THROUGH NORMAL COLLECTION
16 PROCESSES.

17 H. THIS SECTION DOES NOT ALLOW FOR THE IMPOUNDMENT OF ANY CARGO
18 OWNED BY A THIRD PARTY. IF THE COMMERCIAL MOTOR VEHICLE WAS TRANSPORTING
19 CARGO AT THE TIME THE PERSON OPERATING THE COMMERCIAL MOTOR VEHICLE WAS
20 PLACED OUT-OF-SERVICE PURSUANT TO SUBSECTION D OF THIS SECTION, THE LAW
21 ENFORCEMENT AGENCY SHALL:

22 1. IMMEDIATELY MAKE REASONABLE EFFORTS TO IDENTIFY AND CONTACT THE
23 CARGO OWNER, WHICH MAY INCLUDE REVIEWING ANY OF THE FOLLOWING:

24 (a) BILLS OF LADING, SHIPPING MANIFESTS OR DELIVERY DOCUMENTS
25 LOCATED IN THE IMPOUNDED COMMERCIAL MOTOR VEHICLE.

26 (b) INFORMATION PROVIDED BY THE MOTOR CARRIER OR THE PERSON
27 OPERATING THE COMMERCIAL MOTOR VEHICLE.

28 (c) CONTACT INFORMATION ON CARGO PACKAGING OR DOCUMENTATION.

29 2. NOTIFY THE CARGO OWNER BY TELEPHONE, EMAIL OR OTHER AVAILABLE
30 MEANS WITHIN FOUR HOURS AFTER THE COMMENCEMENT OF ANY STOP THAT RESULTS IN
31 THE OUT-OF-SERVICE PLACEMENT OF THE PERSON OPERATING THE COMMERCIAL MOTOR
32 VEHICLE CARRYING THE CARGO.

33 3. IF THE CARGO OWNER IS DEEMED UNREACHABLE PURSUANT TO SUBSECTION
34 J OF THIS SECTION, NOTIFY THE CARGO OWNER BY CERTIFIED MAIL WITHIN
35 FORTY-EIGHT HOURS AFTER THE COMMENCEMENT OF A STOP THAT RESULTS IN THE
36 OUT-OF-SERVICE PLACEMENT OF THE PERSON OPERATING THE COMMERCIAL MOTOR
37 VEHICLE CARRYING THE CARGO. THE COSTS INCURRED FOR THE NOTIFICATION SENT
38 TO THE CARGO OWNER PURSUANT TO THIS PARAGRAPH IS THE RESPONSIBILITY OF THE
39 MOTOR CARRIER AND SHALL BE ADDED TO ANY IMPOUNDMENT CHARGES.

40 4. PROVIDE NOTIFICATION TO THE CARGO OWNER PURSUANT TO PARAGRAPHS 2
41 AND 3 OF THIS SUBSECTION THAT INCLUDES:

42 (a) THE LOCATION OF THE CARGO.

43 (b) CONTACT INFORMATION FOR RETRIEVAL OF THE CARGO.

44 (c) A LIST OF THE REQUIRED DOCUMENTS NEEDED TO RETRIEVE THE CARGO.

45 (d) A STATEMENT THAT THE RETRIEVAL OF THE CARGO IS AT NO CHARGE TO
46 THE CARGO OWNER. THE MOTOR CARRIER OR LESSEE OF THE COMMERCIAL MOTOR
47 VEHICLE IS SOLELY RESPONSIBLE FOR ALL IMPOUNDMENT, TOWING AND STORAGE

1 CHARGES FOR THE COMMERCIAL MOTOR VEHICLE, FOR ANY CHARGES RELATED TO THE
2 UNLOADING, THE HANDLING, APPROPRIATE STORAGE AND THE TRANSFER OF AND
3 ADMINISTRATIVE OR OTHER FEES RELATED TO THE CARGO THE COMMERCIAL MOTOR
4 VEHICLE WAS CARRYING AT THE TIME OF THE VIOLATION AND FOR ANY COSTS
5 INCURRED FOR NOTIFICATION BY CERTIFIED MAIL PURSUANT TO PARAGRAPH 3 OF
6 THIS SUBSECTION.

7 5. PROVIDE REASONABLE ASSISTANCE FOR CARGO LOADING AND
8 TRANSFER. THE CARGO OWNER MAY BRING EQUIPMENT OR TRANSPORTATION TO AID IN
9 THE LOADING AND TRANSFER OF THE CARGO.

10 6. DOCUMENT THE RETRIEVAL OF THE CARGO WITH A SIGNED RECEIPT THAT
11 MUST NOTE THE CONDITION OF THE CARGO AT THE TIME OF RETRIEVAL AND RELEASE.

12 7. IF THE CARGO CANNOT BE SAFELY STORED AT THE SCENE OF THE STOP,
13 ARRANGE THROUGH AN AUTHORIZED IMPOUND FACILITY OR TOWING CONTRACTOR FOR
14 APPROPRIATE STORAGE THAT MEETS THE NEEDS AND PREVENTS LOSS OR DAMAGE OF
15 THE CARGO. APPROPRIATE STORAGE OF THE CARGO MAY INCLUDE:

- 16 (a) REFRIGERATION FOR PERISHABLE GOODS.
- 17 (b) CLIMATE CONTROL FOR TEMPERATURE-SENSITIVE GOODS.
- 18 (c) SECURE FACILITIES FOR HIGH-VALUE CARGO.
- 19 (d) PERMITTED HAZARDOUS MATERIALS STORAGE FOR HAZMAT MATERIALS.
- 20 (e) SPECIALIZED FACILITIES FOR LIVESTOCK OR OTHER CARGO WITH
21 SPECIAL NEEDS.

22 8. IF THE CARGO IS PERISHABLE OR TIME-SENSITIVE OR THE CARGO IS FOR
23 MEDICAL, EMERGENCY OR CRITICAL INFRASTRUCTURE PURPOSES:

24 (a) EXPEDITE NOTIFICATION TO THE CARGO OWNER AND FACILITATE
25 EXPEDITED RETRIEVAL OF THE CARGO. THE CARGO OWNER MAY RETRIEVE THE CARGO
26 IMMEDIATELY ON ARRIVAL AT THE CARGO'S LOCATION, INCLUDING OUTSIDE NORMAL
27 BUSINESS HOURS.

28 (b) IF THE CARGO OWNER CANNOT ARRANGE IMMEDIATE RETRIEVAL OF THE
29 CARGO, ALLOW THE CARGO OWNER TO DESIGNATE AN ALTERNATIVE CARRIER OR
30 LOGISTICS PROVIDER TO RETRIEVE THE CARGO.

31 I. THE LAW ENFORCEMENT AGENCY OR IMPOUND FACILITY SHALL IMMEDIATELY
32 RELEASE THE CARGO TO THE CARGO OWNER OR AN AUTHORIZED DESIGNEE OF THE
33 CARGO OWNER AND MAY NOT CONDITION RELEASE OF THE CARGO ON PAYMENT OF ANY
34 COSTS OR RESOLUTION OF ANY CHARGES AGAINST THE PERSON OPERATING THE
35 COMMERCIAL MOTOR VEHICLE OR MOTOR CARRIER, ON PRESENTATION OF BOTH OF THE
36 FOLLOWING:

37 1. PROOF OF OWNERSHIP, INCLUDING:

38 (a) THE BILL OF LADING THAT LISTS THE PERSON OR ENTITY AS
39 CONSIGNOR, CONSIGNEE OR OWNER OF THE CARGO.

40 (b) THE PURCHASE ORDER, INVOICE OR RECEIPT THAT SHOWS OWNERSHIP OF
41 THE CARGO.

42 (c) ANY OTHER DOCUMENTATION THAT ESTABLISHES OWNERSHIP OR RIGHT TO
43 POSSESSION OF THE CARGO.

44 2. PROOF OF IDENTITY OF THE PERSON WHO IS RETRIEVING THE CARGO.

45 J. FOR THE PURPOSES OF THIS SECTION:

1 1. TO FULFILL ANY STORAGE, HANDLING, NOTIFICATION OR ARRANGEMENT
2 FOR STORAGE OF A COMMERCIAL MOTOR VEHICLE OR ANY CARGO, THE LAW
3 ENFORCEMENT AGENCY MAY USE:

4 (a) EXISTING TOWING SERVICE CONTRACTS.

5 (b) AUTHORIZED IMPOUNDMENT FACILITIES.

6 (c) THIRD-PARTY STORAGE PROVIDERS.

7 (d) ANY OTHER COMMERCIALLY AVAILABLE SERVICE PROVIDER CAPABLE OF
8 MEETING THE REQUIREMENTS OF THIS SECTION.

9 2. ANY NOTIFICATION REQUIRED BY THIS SECTION MAY BE FULFILLED BY
10 THE LAW ENFORCEMENT AGENCY OR BY AN AUTHORIZED IMPOUND FACILITY OR TOWING
11 CONTRACTOR ACTING ON BEHALF OF THE LAW ENFORCEMENT AGENCY.

12 3. A PARTY REQUIRED TO BE CONTACTED BY THIS SECTION MAY BE DEEMED
13 UNREACHABLE BY TELEPHONE OR EMAIL IF:

14 (a) A TELEPHONE NUMBER OR EMAIL ADDRESS IS NOT FOUND IN SHIPPING
15 DOCUMENTS, VEHICLE REGISTRATION DOCUMENTS OR OTHER AVAILABLE DOCUMENTS.

16 (b) TWO TELEPHONE CALLS PLACED AT LEAST ONE HOUR APART ARE NOT
17 ANSWERED.

18 (c) ANY VOICEMAIL OR ANSWERING MACHINE MESSAGES ARE NOT RETURNED
19 WITHIN SIX HOURS FOR A CARGO OWNER OR TWENTY-FOUR HOURS FOR AN OWNER OR
20 LIEN HOLDER OF A COMMERCIAL MOTOR VEHICLE.

21 (d) ANY EMAIL THAT IS SENT IS RETURNED AS UNDELIVERABLE.

22 (e) A RESPONSE TO AN EMAIL IS NOT RECEIVED WITHIN SIX HOURS FOR A
23 CARGO OWNER OR TWENTY-FOUR HOURS FOR AN OWNER OR LIEN HOLDER OF A
24 COMMERCIAL MOTOR VEHICLE.

25 K. IT IS AN AFFIRMATIVE DEFENSE TO IMPOUNDMENT PURSUANT TO THIS
26 SECTION IF THE MOTOR CARRIER VERIFIED THE PERSON'S COMMERCIAL DRIVER
27 LICENSE THROUGH THE COMMERCIAL DRIVER'S LICENSE INFORMATION SYSTEM THAT IS
28 MAINTAINED BY THE FEDERAL MOTOR CARRIER SAFETY ADMINISTRATION AND THE
29 DRIVER LICENSE WAS NOT SUSPENDED, REVOKED OR DISQUALIFIED AT THE TIME OF
30 VERIFICATION.

31 [L. THIS SECTION SHALL NOT BE CONSTRUED SO AS TO BROADEN THE
32 CATEGORY OF PERSONS TO WHOM A NONDOMICILED COMMERCIAL DRIVER LICENSE MAY
33 BE ISSUED AND PROVIDES NO INDEPENDENT AUTHORIZATION FOR THE ISSUANCE OF
34 SUCH LICENSES.]

35 Enroll and engross to conform

36 Amend title to conform

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